

25AVCV00514 25AVCV00514

County: los-angeles

Division: Civil Law and Motion

Department: A14

Hearing date: 2026-09-15

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=ATP%2CA14%2C09%2F15%2F2026

Source SHA-256: 2b232f5aa24f49e3f7ba849db437da7b4eac74c792f5412ad020a7dd971eb00c

Case Number: 25AVCV00514 Hearing Date: September 15, 2026 Dept: A14

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES – NORTH DISTRICT

ALFONSO CARDENAS,

Plaintiff,

v.

FORD MOTOR COMPANY, a Delaware Corporation; DALIA MOTOR GROUP, INC., a California Stock Corporation DBA Diamond Ford; and DOES 1 through 10, inclusive,

Defendants.

Case Number 25AVCV00514

[TENTATIVE]

RULING ON MOTIONS

Date of Hearing: September 15, 2026

Dept. A-14

Judge William H. Forman

I. Background

This is a Song-Beverly Action. Plaintiff Alfonso Cardenas (Plaintiff) moves to compel further discovery responses from Defendant Ford Motor Company (Ford).

On April 21, 2025, Plaintiff filed a complaint against Defendants Ford and Dalia Motor Group dba Diamond Ford (Diamond), asserting four causes of action for (1) Violation of the Song-Beverly Act – Breach of Express Warranty, (2) Violation of the Song-Beverly Act – Section 1793.2, (3) Fraudulent Inducement – Concealment, and (4) Negligent Repair.

On May 20, 2025, Plaintiff filed the operative first amended complaint (FAC) asserting four causes of action for (1) Violation of the Song-Beverly Act – Breach of Express Warranty, (2) Violation of the Song-Beverly Act – Breach of Implied Warranty, (3) Violation of the Song-Beverly Act – Section 1793.2, and (4) Negligent Repair against Ford and Diamond.

On June 10, 2026, Plaintiff filed a motion to compel further responses to special interrogatories and a motion to compel further responses to requests for production from Ford.

On June 22, 2026, the Court granted the parties' stipulation and protective order regarding discovery.

On September 2, 2026, Ford filed its oppositions.

On September 8, 2026, Plaintiff filed his replies.

II. Preliminary Procedural Issues

Meet and Confer – A motion to compel further responses must be accompanied by a meet and confer declaration showing “a reasonable and good faith attempt at an informal resolution of each issue presented by the motion.” (Code Civ. Proc., §§ 2016.040, 2030.300, subd. (b)(1), 2031.310, subd. (b)(2).)

The Liete Declaration provided by Plaintiff establishes that counsel for both parties met and conferred regarding these motions and attended an IDC prior to filing. The Court finds this requirement satisfied.

Timeliness of Ford's Opposition – All opposition papers are due nine court days before the hearing on the motion. (Code Civ. Proc., § 1005, subd. (b).) Due to the Court holiday on Monday, September 7, 2026, Ford's opposition was due on or before August 1, 2026. Therefore, the opposition is untimely.

However, in the absence of any prejudice to Plaintiff, and in the interests of adjudicating the issues raised on the merits, the Court will exercise its discretion and consider the opposition on the merits.

III. Legal Standard

Standard for Motions to Compel Further Discovery Responses - Interrogatories – In responding to a set of interrogatories, a party must provide one of the following: (1) an answer “containing the information sought to be discovered”; (2) “an exercise of the party’s option to produce writings”; or (3) an objection to the particular interrogatory. (Code Civ. Proc., § 2030.210, subd. (a).) Each answer to an interrogatory “shall be as complete and straightforward as the information reasonably available to the responding party permits.” (Code Civ. Proc. § 2030.220, subd. (a).) If any objections are made, “the specific ground for the objection shall be set forth clearly in the response.” (Code Civ. Proc., § 2030.240, subd. (b).)

Upon receipt of responses to interrogatories, the propounding party may move for an order compelling further responses if they deem the responses to be “evasive or incomplete” or if “[a]n objection to an interrogatory is without merit or too general.” (Code Civ. Proc., §§ 2030.300(a)(1), (a)(3).) A motion to compel further responses to interrogatories must be accompanied by a meet and confer declaration showing “a reasonable and good faith attempt at an informal resolution of each issue presented by the motion.” (Code Civ. Proc., §§ 2016.040, 2030.300, subd. (b)(1).) The motion must also be accompanied by a separate statement containing the text of the interrogatories at issue, the text of each response at issue, and a statement of the reasons why a further response is required, though the court may permit a party to submit “a concise outline of the discovery request and each response in dispute” in lieu of a separate statement. (Code Civ. Proc., § 2030.300, subd. (b)(2); Cal. Rules of Court, rule 3.1345.)

A motion to compel further response lies where the party to whom the interrogatories were directed gave responses deemed improper by the propounding party; e.g., objections, or evasive or incomplete answers. (Code Civ. Proc., § 2030.300.) Unlike a motion to compel further responses to a request for production, there is no “good cause” requirement applicable to a motion to compel further responses to interrogatories. “The ruling usually is based on consideration of the following factors: the relationship of the information sought to the issues framed in the pleadings; the likelihood that disclosure will be of practical benefit to the party seeking discovery; the burden or expense likely to be encountered by the responding party in furnishing the information sought.” (Weil, et al., Cal. Prac. Guide, Civil Procedure Before Trial, Ch. 8F-7, ¶ 8:1181; see also *Columbia Broadcasting System, Inc v. Superior Court* (1968) 263 Cal.App.2d 12, 18–19 [“[I]n deciding a motion under [former] section 2030 the trial court must, of necessity, consider not only the stated objections to the interrogatories, but also the interrogatories themselves, as well as the pleadings, and the contentions of the interrogating party as to the purpose and validity of the interrogatories. If the interrogatories stray too far and seek information which cannot reasonably serve the acknowledged purposes of pretrial discovery, the motion should be denied.”].) If a timely motion to compel has been filed, the burden is on the responding party to justify any objection or failure to fully answer. (*Coy v. Superior Court of Contra Costa County* (1962) 58 Cal.2d 210, 220–221.)

If a party fails to serve a timely response to interrogatories, the party waives the right to exercise the option to produce writings under Section 2030.230 and waives any objection to the demand, including objections based on privilege or work product. (Code Civ. Proc., § 2030.290, subd. (a).) The Court may relieve a party of this waiver only if the party has subsequently served a substantially code-compliant response and the party’s failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect. (Code Civ. Proc., § 2030.290, subd. (a)(1)-(2).)

Standard for Motions to Compel Further Discovery Responses – Requests for Production of Documents – Motions to compel further responses to requests for production must set forth specific facts showing good cause justifying the discovery sought by the request. (Code Civ. Proc., § 2031.310, subd. (b)(1).) To establish good cause, a discovery proponent must identify a disputed fact that is of consequence in the action and explain how the discovery sought will tend in reason to prove or disprove that fact or lead to other evidence that will tend to prove or disprove the fact. (*Digital Music News LLC v. Superior Court* (2014) 226 Cal.App.4th 216, 224 (disapproved on other grounds by *Williams v. Superior Court* (2017) 3 Cal.5th 531).)

A demanding party may move for an order compelling further response to RPDs if (1) a statement of compliance with the demand is incomplete, (2) a representation of inability to comply is inadequate, incomplete, or evasive, or (3) an objection in the response is without merit or too general. (Code Civ. Proc., § 2031.310, subd. (a).) “A representation of inability to comply with the particular demand for inspection, copying, testing, or sampling shall affirm that a diligent search and a reasonable inquiry has been made in an effort to comply with that demand. This statement shall also specify whether the inability to comply is because the particular item or category has never existed, has been destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer, in the possession, custody, or control of the responding party. The statement shall set forth the name and address of any natural person or organization known or believed by that party to have possession, custody, or control of that item or category of item.” (Code Civ. Proc., § 2031.230.)

If a party fails to serve a timely response to a request for production, the party waives any objection to the demand, including objections based on privilege or work product. (Code Civ. Proc., § 2031.300, subd. (a).) The Court may relieve a party of this waiver only if the party has subsequently served a substantially code-compliant response and the party's failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect. (Code Civ. Proc., § 2031.300, subd. (a)(1)-(2).)

IV. Discussion

Application – Plaintiff moves to compel Ford's further responses to Special Interrogatories, Nos. 10, 26, 47, and 49-58, pursuant to Code of Civil Procedure sections 2030.300, subdivision (e) and 2023.030, subdivision (g) on the grounds that Ford has failed to provide code-compliant answers responsive to the request and has asserted meritless objections. (Notice of Motion, p. 1:8-11.) Plaintiff also moves to compel further responses to Request for Production, Nos. 16-18, 20-30, 47, 49, 50-54 and 55-60 pursuant to Code of Civil Procedure section 2031.310 on the same grounds. (Notice of Motion, p. 1:8-10.)

The relevant factual background is set forth by Plaintiff as follows:

Plaintiff served the discovery requests on November 19, 2025. (Leite Decl., ¶ 3, Ex. A.) Ford served unverified responses on December 23, 2025, later serving verifications on January 23, 2026. (Leite Decl., ¶ 4, Ex. B.) Plaintiff initiated a meet and confer process on January 13, 2026 with a letter to Ford's counsel identifying deficiencies in the responses. (Liete Decl., ¶ 5, Ex. C.) On January 30, 2026, counsel for both parties agreed to extend the deadline to file a motion to compel to June 10, 2026 to allow time to attend an IDC and continue meet and confer efforts. (Liete Decl., ¶ 6, Ex. D.) The parties attended an IDC on May 27, 2026 and judicial guidance was provided as to which responses should be supplemented by Ford, but Plaintiff had not received any supplemental responses as of the date of filing. (Liete Decl., ¶¶ 7-8.)

a. Special Interrogatories

At issue are Special Interrogatory Nos. 10, 26, 47, and 49-58.

No. 10 asks Ford to state all facts supporting its contention that the vehicle does not qualify for repurchase under the Song-Beverly Act. Ford responded that the facts in support of its contention are or may be found in a number of documents produced with Ford's initial disclosure, listed the relevant documents, and objected on the grounds that the interrogatory was overly broad, unduly burdensome, seeks irrelevant information because it is not limited to a reasonable or relevant timeframe, to the components or systems at issue, or to the allegations in Plaintiff's Complaint, seeks expert opinions and/or premature disclosure of information developed by Ford's experts and/or consultants, and seeks information protected from disclosure by the attorney-client privilege and/or the work product doctrine.

Plaintiff argues Ford's reliance on reference to documents provided in response is insufficient, as there is no way for Plaintiff to know what facts within the documents, if any, are responsive to the request.

The documents referenced by Ford relate to their general records regarding the vehicle, communications regarding the vehicle, repair and service information, reimbursements to Ford dealers, service contracts, and other generally applicable documents like TSBs and an Owner's Manual and Warranty Guide. The Court finds Ford's response generic and non-compliant. Ford argues that it provided documents containing the responsive facts, and they are therefore equally available to Plaintiff. (Opp., p. 7:2-3.) While the general facts themselves may be contained within those documents, what is not available to Plaintiff are what facts Ford is relying on when contending that Plaintiff's vehicle does not qualify for repurchase. Ford needs to state why it has determined the vehicle does not qualify.

Interrogatory No. 26 asks Ford to describe all training provided from 2022 to present regarding how to evaluate a pre-litigation repurchase request under the Song-Beverly Act. Ford responded by referring Plaintiff to its Warranty Policy and Procedure Manuals for 2022 to present subject to a protective order, objected on the same grounds as stated above, on relevance grounds as Plaintiff did not request a repurchase or replacement of the subject vehicle before filing this lawsuit, and asserts that the facts and circumstances surrounding vehicle repurchases or replacements vary widely depending on any number of factors, so the training materials made available may vary or differ depending on the circumstances of a repurchase request.

Plaintiff again argues Ford's reliance on reference to documents provided in response is insufficient, as there is no way for Plaintiff to know what facts within the documents, if any, are responsive to the request. Here, the Court disagrees.

In response to this request, Ford offered to produce certain documents which outline its training policies and procedures from 2022 through 2025, when Plaintiff filed suit. Ford's counsel Adam Trott asserts that upon the stipulation and protective order being filed on June 18, 2026, Ford served a Workshop Manual for the vehicle and Ford's warranty policy and procedure applicable from 2022 through 2025. (Trott Decl., ¶ 10, Ex. A.) Trott states Ford made a second confidential production on August 31, 2026, producing Ford's Customer Relationship Center policies and procedures applicable from 2021 through 2025 and the RAV policy and procedure manual applicable from 2022 to present. (Trott Decl., Ex. B.) Here, unlike Interrogatory No. 10, the information regarding training provided for evaluation of a pre-litigation repurchase request is available to Plaintiff through these documents. There is no basis provided justifying an order requiring Ford to separately describe this information where it has been made available to Plaintiff pursuant to Code of Civil Procedure section 2030.230.

Interrogatory No. 47 asks Ford to describe its efforts to preserve relevant and discoverable information in this case, including preservation letters, the custodians to whom such preservation letters were sent, and the efforts taken to prevent against deletion or destruction of information. Ford objected on the same grounds as stated above and on the ground that the request is irrelevant as Plaintiff had not identified any documents that Ford has failed to produce and that Ford's records management program is confidential and proprietary. Interrogatory Nos. 49-54 ask Ford to identify each person responsible for the operations, maintenance, expansion, archiving and upkeep of the network where its customer contact call logs (No. 49), documents regarding any pre-litigation repurchase analysis it performed for the vehicle (No. 50), policies and procedures for evaluating a repurchase or replacement under the Song-Beverly Act (No. 51), technical assistance cases between Ford and its authorized repair facilities (No. 52), documents evidencing any consumer complaints for defects in materials and workmanship made to Ford (No. 53), and warranty claim records (No. 54) are electronically stored from 2022 to present. Interrogatory Nos. 55-58 ask Ford to state its document/data retention or destruction policies used by those who evaluate California consumer requests for repurchase or replacement (No. 55), and that govern customer call log records (No. 56), technical assistance cases between Ford and its authorized repair facilities (No. 57), and warranty claim records (No. 58) from 2022 to the present.

Ford objected on the same grounds asserted above, that the requests are overly broad, unduly burdensome, seek irrelevant information, seek expert opinions and/or premature disclosure of information developed by Ford's experts and/or consultants, seek information protected from disclosure by the attorney-client privilege and/or the work product doctrine, and seek confidential and proprietary information.

Plaintiff cites to federal authority holding that a defendant is required to disclose certain information about electronically stored information sources it has preserved in support of compelling further responses to these requests, and asserts that Ford's record retention and policies directly relate to whether Ford has withheld or destroyed responsive evidence and relate to willfulness. In opposition, Ford cites to a number of federal decisions holding that discovery about discovery is, by definition, not information reasonably calculated to lead to the discovery of admissible evidence. (Opp., p. 12:15-13:3.)

While the Court finds that some of Ford's objections are without merit, including objections on the basis of expert opinion, premature disclosure of information developed by Ford's experts, and attorney-client privilege, the Court agrees that these requests are largely irrelevant, overbroad in scope, and the Court likewise fails to see how Ford's data retention and destruction policies dating back to 2022 are associated with Ford's repair analysis of Plaintiff's vehicle or Plaintiff's ability to prove his case. Plaintiff argues that this information is necessary to confirm Ford's compliance with their discovery requests, but the Court is not aware of any law permitting discovery to the extent sought here to obtain the names of every person who has been responsible for archival and maintenance of records for three years. Furthermore, as discussed below, it does not

appear that Ford failed to produce responsive documents on the grounds that the documents do not exist or have been overwritten or deleted in the normal course of implementation its records retention policies. In short, the information sought is irrelevant to Plaintiff's claims.

Furthermore, Plaintiff's argument on reply, if nothing else, establishes that these requests are not necessarily specific to the case at hand. Plaintiff argues that his counsel routinely litigates Song-Beverly actions against Ford's counsel and has observed varying and inconsistent productions by Ford across numerous other cases, raising questions as to whether Ford's general search, retention, and preservation practices are being consistently applied in every case. (Reply, p. 4:14-18.) Plaintiff does not point to any specific deficiencies in the production in this case to overcome the validity of Ford's relevance objections, and discovery produced by Ford in unrelated, separate cases has no bearing on the relevancy of the documents sought here.

As a final note, Plaintiff relies, in part, on *Kwan v. Mercedes-Benz of North America, Inc.* (1994) 23 Cal.App.4th 174, 186 to support its argument as to the relevance of retention policies. The passage cited by Plaintiff from *Kwan* related to a "written policy on implementation of the Act's provisions," where the plaintiff argued that the defendant's "lack [of a Song-Beverly implementation policy] is circumstantial evidence of a corporate state of mind that intended to violate the Act." (*Kwan*, supra, 23 Cal.App.4th at 186.) The *Kwan* Court made no mention of relevancy of retention policies.

Accordingly, Plaintiff's request is GRANTED as to Special Interrogatory No. 10. The remainder of Plaintiff's requests are DENIED.

b. Requests for Production

At issue are Request Nos. 16-18, 20-30, 47, and 49-59.

Request No. 16 seeks each written warranty provided by Ford for the subject vehicle. Ford produced the New Vehicle Limited Warranty Guide for the 2022 Ford Mustang Mach-E and objected on the grounds that the request is overly broad, unduly burdensome, and seeks irrelevant documents because it is not limited to any specific written warranty, to the concerns related to the subject vehicle contained in Plaintiff's repair or service records and to the allegations in Plaintiff's Complaint. The Court finds that Ford's objections are without merit and that the response provided is not code-compliant. "A representation of inability to comply with the particular demand for inspection, copying, testing, or sampling shall affirm that a diligent search and a reasonable inquiry has been made in an effort to comply with that demand. This statement shall also specify whether the inability to comply is because the particular item or category has never existed, has been destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer, in the possession, custody, or control of the responding party. The statement shall set forth the name and address of any natural person or organization known or believed by that party to have possession, custody, or control of that item or category of item." (Code Civ. Proc., § 2031.230.) This request is reasonably tailored in scope to the time period from sale of the vehicle to date, and Plaintiff has shown good cause to compel production of the documents sought. It may very well be that Ford has produced all the documents responsive to the request. But its current response is qualified and ambiguous. If no other responsive documents are available, Ford must provide a code-compliant response so asserting.

Request No. 17 seeks all documents constituting Ford's warranty claims policy and procedures from 2022 to the present. Ford produced its Warranty Policy and Procedure Manual applicable to 2022 to the present, subject to a protective order. Ford is correct that "all documents constituting" renders the request unreasonably open-ended and subject to interpretation: "Plaintiff's assertion that Ford's responses are not Code compliant because Ford does not identify with particularity any document to which an objection is made is baseless, because it ignores the fact that Plaintiff's Requests seek the production of 'all documents.'" (Opposition, at 10.) Given the nature of the request, the Court does not know how Ford is to "identify with particularity" every document that is not produced that could conceivably all within the scope of the request. Ford's response is adequate.

Request No. 18 seeks Ford's workshop manuals for the subject vehicle. Ford referred Plaintiff to the Workshop Manual for the 2022 Ford Mustang Mach-E and otherwise objected on the grounds stated above. For the reasons stated as to Request

No. 16, Ford's objections are without merit and its response is not code-compliant.

Request Nos. 20-22 seek Ford's policies and procedures for evaluating consumer complaints, requests for a refund of money paid toward a vehicle, and determination of whether a vehicle is eligible for repurchase for vehicles manufactured or distributed by Ford from 2022 to present. Request Nos. 23-24 seek training materials regarding the handling of consumer requests for a vehicle repurchase and determination of whether a vehicle is eligible for repurchase. Request No. 25 seeks all scripts and flow charts used by Ford in handling consumer requests for repurchase or replacement. Request Nos. 26-30 seek Ford's policies and procedures for defining certain terms and establishing time frames in which to respond to repurchase requests in connection with vehicle repurchase. Ford agreed to comply in part and produce all responsive documents not subject to objection, and otherwise objected on the grounds stated above and because complaints, requests, and determinations regarding repurchase vary widely from customer to customer. For the reasons stated as to Request No. 17, and considering the scope of the requests, Ford's responses, with its description of its supplemental productions, are adequate...

Request No. 47 seeks documents regarding Ford's efforts to preserve relevant and discoverable information, including preservation letters, the custodians to whom such preservation letters were sent and efforts taken to prevent against deletion or destruction of information. Request Nos. 50-59 seek all documents regarding Ford's policies and procedures related to disaster recovery backups of Ford's databases and regarding Ford's document retention policies and procedures for: (1) evaluating requests for repurchase; (2) customer call logs; (3) customer complaints; (4) technical assistance cases; and (5) customer warranty claim records, from 2022 to the present. Ford produced no documents and objected to these requests.

For the reasons stated above regarding Plaintiff's motion to compel further responses to his Special Interrogatories, the Court finds that no good cause exists to compel these documents and that Ford's relevancy objections have merit. Again, Plaintiff has failed to establish why disaster recovery backups of Ford's databases are relevant to the issues raised in this action, and the discovery sought does not seek to address any specific deficiency present in Ford's discovery production in this case.

Request No. 49 is not included on Plaintiff's separate statement and the Court takes no action as to this request.

Accordingly, Plaintiff's request is GRANTED in part as to Request Nos. 16 and 18.

Plaintiff's request is DENIED as to the remaining requests.

c. Sanctions

Plaintiff requests monetary sanctions in the amount of \$1,980 for his special interrogatories motion and \$2,240.00 for his document production motion. (Liete Decl., ¶ 5.)

"The court shall impose monetary sanctions ... against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a further response ..., unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., § 2031.310, subd. (h).)

The Court finds that Ford's objections were warranted for a majority of the requests addressed in the motion to compel further responses to Plaintiff's Special Interrogatories. The Court also finds that Ford acted with substantial justification in opposing the motions, and therefore declines to award monetary sanctions.

Accordingly, the Court DENIES Plaintiff's request for sanctions.

V. Conclusion

Plaintiff Alfonso Cardenas' Motion to Compel Further Responses to Special Interrogatories from Defendant Ford Motor Company is GRANTED in part as to Special Interrogatory No. 10. The remainder of Plaintiff's requests are DENIED.

Plaintiff Alfonso Cardenas' Motion to Compel Further Responses to Requests for Production from Defendant Ford Motor Company is GRANTED in part as to Requests Nos. 16 and-18, and otherwise DENIED.

Plaintiff's request for monetary sanctions is DENIED..

Defendant Ford is to serve amended, code-compliant responses in accordance with this Order within 15 days.